

**P O R T E R | S C O T T**

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

**SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO**

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

**[PROPOSED] ORDER ON  
DEFENDANT'S MOTION TO STRIKE  
PLAINTIFF'S FIRST AMENDED  
COMPLAINT PURSUANT TO C.C.P.  
§ 425.16 (ANTI-SLAPP MOTION)**

v.

CSAA INSURANCE EXCHANGE; DOES  
1 through 50,

Defendants.

**[CODE CIV. PROC. § 425.16]**

**DATE: MAY 13, 2026**

**TIME: 9:00 A.M.**

**DEPT: 302**

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

1 This matter came on regularly before the Court for hearing on \_\_\_\_\_.  
2 \_\_\_\_\_ appeared for Defendant, CSAA INSURANCE EXCHANGE.  
3 \_\_\_\_\_ appeared for Plaintiff, FRANCISCUS DYLAN ROSARIO. The  
4 Court, having reviewed the moving and opposing papers on Defendant's Special Motion To Strike  
5 The First Amended Complaint herein pursuant to Code Civ. Proc. § 425.16; and oral argument of  
6 counsel having been received by the Court:

7 **The Court finds, adjudges and orders as follows:**

8 1. That the Court GRANTS Defendant, CSAA INSURANCE EXCHANGE's Special  
9 Motion to Strike as follows: \_\_\_\_\_

10 \_\_\_\_\_  
11 \_\_\_\_\_  
12 \_\_\_\_\_  
13 \_\_\_\_\_

14 **IT IS SO ORDERED.**

15 **IT IS FURTHER ORDERED** as follows: \_\_\_\_\_

16 \_\_\_\_\_  
17 \_\_\_\_\_  
18 \_\_\_\_\_

19 \_\_\_\_\_  
20 Dated: \_\_\_\_\_

21 \_\_\_\_\_  
22 Judge of the Superior Court

23 \_\_\_\_\_  
24 \_\_\_\_\_  
25 \_\_\_\_\_  
26 \_\_\_\_\_  
27 \_\_\_\_\_  
28 \_\_\_\_\_

1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***  
2 **San Francisco County Superior Court Case No.: CGC-25-631802**

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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business  
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 9, 2026, I served the following document: **[PROPOSED] ORDER ON**  
7 **DEFENDANT'S MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT**  
8 **PURSUANT TO C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

|     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|-----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 9 X | <b>BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED:</b> I caused to be served<br>10 the above referenced document(s) by registered or certified mail, return receipt requested, with the United<br>11 States Postal Service, in a sealed envelope with postage fully prepaid.                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 12  | <b>BY PERSONAL SERVICE:</b> I caused such document to be personally delivered to the person(s) addressed<br>13 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's<br>14 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being<br>15 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning<br>16 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the<br>17 party's residence with some person not younger than 18 years of age between the hours of eight in the<br>18 morning and six in the evening. |
| 19  | <b>BY OVERNIGHT DELIVERY:</b> I enclosed the documents in an envelope or package provided by an<br>20 overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for<br>21 collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery<br>22 carrier.                                                                                                                                                                                                                                                                                                                                                                                 |
| 23  | <b>BY ELECTRONIC TRANSMISSION:</b> By electronically serving the document(s) to the electronic mail<br>24 address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section<br>25 1010.6(a)(2), (4) and (5).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

26 Addressed as follows:

27 **PLAINTIFF, IN PRO PER**

28 Franciscus Dylan Rosario  
7624 Melody Drive  
Rohnert Park, CA 94928  
[soltrinox@gmail.com](mailto:soltrinox@gmail.com)

I declare under penalty of perjury under the laws of the State of California that the foregoing  
is true and correct. Executed on Sacramento, California on April 9, 2026.

**Monique Schubert**

Monique Schubert